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Case Number: SS026368 Hearing Date: June 25, 2026 Dept: M

CASE NAME: Yu Lesebeg v. Feld

CASE NO.: SS026368

MOTION: Motions

to Tax/Strike Costs

HEARING DATE: 6/23/2026

Legal

Standard

The judgment creditor is entitled to "reasonable and necessary costs" of enforcing a judgment. (CCP § 685.040.) Attorney's fees incurred in enforcing a judgment are included as costs collectible under this title if the underlying judgment includes an award of attorney's fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of Section 1033.5. (Ibid.) The judgment creditor may claim certain delineated costs of enforcing a judgment in a memorandum of costs before the judgment is satisfied but not later than two years after the costs have been incurred. (CCP § 685.070(a)-(b).) Within 10 days after the memorandum of costs is served on the judgment debtor, the judgment debtor may apply to the court on noticed motion to have the costs taxed by the court and the court shall make an order allowing or disallowing the costs to the extent justified under the circumstances of the case. (CCP § 685.070(c).) If no motion to tax is made, the costs claimed in the memo are allowed. (CCP § 685.070(d).)

Unless

objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and state why each item is objectionable. (CRC rule 3.1700(b)(2).) Any grounds not stated are waived. (Boyd v. Oscar Fisher Co. (1989) 210 Cal. App. 3d 368, 383.)

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verified memorandum of costs is prima facie evidence that the costs, expenses, and services therein listed were necessarily incurred. (Rappenecker v. Sea-Land Serv., Inc. (1979) 93 Cal.App.3d 256, 266.) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (CCP § 1033.5(c)(2).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (Ladas v. California State Auto. Assn. (1993) 19 Cal. App. 4th 761, 774.) On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (Id.)

Analysis

This hearing regards three separate motions by Judgment Debtor Rolan Feld ("JD") to strike three separate cost memorandums submitted by Judgment Creditor ("JC") Yu Leseberg.

Evidentiary Issues

JD's

request for judicial notice is GRANTED.

JC's request for judicial notice is
GRANTED.

Bankruptcy Trustee's request for
judicial notice is GRANTED.

March 17, 2025, (Amended) Memorandum

The March 2025 cost memorandum claimed

\$453,586.48 in new costs incurred in the last two years, consisting entirely of attorneys' fees. The March 2025 memo acknowledged previously allowed costs of \$532,120.62 stating that the total of all post-judgment costs was \$985,707.10 (the new costs plus previously allowed costs). It also acknowledged total payments of \$2,847,555.05, with \$1,099,715.78 credit to accrued interest, and \$1,752,352.65 credit to judgment principal. The cost memo states \$1,710,854.74 remained in principal and \$30,684.86 of accrued interest remained due.

JD argued that the requested costs are non-descript and excessive. The Court concurs that the request for \$453,586.48 in attorneys' fees are facially excessive. The record shows very little case activity from the prior cost memo filed on March 29, 2023. (The March 2023 memo already recognized the previously allowed costs of \$532,120.62.) The only significant work revealed by the court record shows JC's opposition to the motion to tax the March 2023 memo, a writ of execution filed on July 2023, and a notice of sale of copyright interest filed on March 4, 2025. Thus, it is likely that the entire fee was not reasonably incurred. The motion is therefore properly brought. JC has the burden to justify the sought fees.

JC argues that the fees in the March 17, 2025, Memorandum of Costs represent fees that were incurred from January 1, 2020 through March 17, 2025. (Cummiskey Decl., ¶¶ 3, 4.) JC presents the following supporting exhibits: 1) Cummiskey Decl., Ex. A, which reflects billing entries for Wolf Wallenstein between January 1, 2020, and through March 17, 2025, in the amount of \$276,647.30; 2) Yu Decl., Ex. A, which reflects time and billing entries for Cinque & Cinque, LLP, a New York firm retained to collect royalties paid in New York on the Copyrights, including billing entries between January 1, 2020 and through March 17, 2025 in the amount of \$144,966.80; and 3) Yu Decl., Ex. B, which shows time and billing entries for Drinker Biddle Reath between January 1, 2020 and through March 17, 2025 in the amount of \$31,972.38.

JC fails to show that it would be entitled to the requested fees. Generally, fees for legal work performed in connection with collection efforts would be reasonably incurred and properly awarded. However, a cost memorandum may only claim costs incurred in the last two years. (CCP § 685.070(a)-(b).) JC fails to distinguish between the allowable fees incurred between March 17, 2023, to March 17, 2025, from fees incurred prior to March 17, 2023. JC instead inappropriately includes fees outside that period. Without making a distinction between the time and untimely

fees, JC has failed to demonstrate its allowable fees. Additionally, a cursory review of the submitted records shows that the allowable fees would not approach \$453,586.48.

There are some additional issues with the details of the supporting exhibits. The invoices from Cinque do not include billing descriptions, time entries, or billing rates. The invoices only state that the fee relates to professional services rendered re: New York Supreme Court Action Yu Leseberg v. Feld (Docket # P000088625). Without the rate and time spent on an enforcement task, the court would have difficulty concluding that the Cinque fees were reasonably incurred. Similarly, the billing entries of Drinker Biddle Reath are bank records which do not include billing entries, billing descriptions, time entries, or rates. Additionally, the bank records only show payment prior to March 17, 2023. Thus, the Drinker Biddle Reath fees are improperly included in the March 2025 cost memorandum. The invoices from the Law Office of John M. McCoy III attached as exhibit C to the Yu declaration are not verified. (Yu Decl., ¶ 4.) She states that exhibit C reflects expert services regarding copyright valuation. These would not be attorneys' fees. Additionally, the McCoy fees were all incurred prior to March 17, 2023. Thus, such fees would not be properly included in the March 2025 cost memo.

In sum, JC has failed to justify the requested costs in the March 2025 cost memo. Accordingly, the motion to tax/strike the March 2025 cost memo is GRANTED.

February 17, 2026, Memorandum

JC contends that the February 2026 memo was superseded by the March 12, 2026, memo. The court will accordingly strike the February 2026 memo for that reason, and only consider the propriety of any overlapping costs claimed by the March 12, 2026, memo.

March 12, 2026, Memorandum

The March 2026 memo claims \$551,014.69 in new costs incurred within the last two years, consisting entirely of attorneys' fees. This is in addition to \$532,120.62 of purported allowed costs. The memo also acknowledges \$2,953,041.42 in payments from JD, with \$1,459,929.41 in credit against accrued interest, and \$1,493,112.01 in credit against the principal. The memo asserts that the judgment has a remaining

principal of \$1,792,357.63 and accrued interest of \$100,515.58.

JD again argues that the requested fee costs are non-descript and excessive. The Court concurs that the request for \$551,014.69 in attorneys' fees for the last two years of enforcement efforts are likely excessive. The motion is therefore properly brought and JC has the burden to justify the sought fees. JC only attempts to present evidence of \$65,250.50 in fees incurred during the two years preceding the March 2026 memo. Specifically, JC submits evidence of the following two categories of fees:

(a) \$35,520.50 in post-November 11, 2025 enforcement costs (representing 50.10 hours of work performed by Saul Ewing LLP and Wolf Wallenstein P.C. through the March 12, 2026, filing of the operative Memorandum of Costs); and

(b) \$29,730.00 in additional enforcement costs (representing 42.00 hours of work performed by Saul Ewing LLP and Wolf Wallenstein P.C.) incurred between March 13, 2026 and the May 18, 2026, hearing.

As to the post-November 11, 2025, enforcement costs, JC submits competent evidence of \$35,520.50 in reasonably incurred attorneys' fees. This includes work on : (1) reconciliation work performed in coordination with the Chapter 7 Trustee's counsel; (2) preparation and filing of YL's March 11, 2026 Reply in Support of the Receiver's Sale Confirmation Motion; (3) preparation for and appearance at the March 17, 2026 sale confirmation hearing, including participation in the court-supervised overbid process and bidding on behalf of YL and (4) initial review of, and preparation of the preliminary response to, Feld's March 25, 2026 Motion to Tax Costs. (Cummiskey Decl. ¶ 4.) As to the additional enforcement costs of \$29,730.00, JC explains that she incurred these costs between March 13, 2026, and May 18, 2026. (Cummiskey Decl., ¶ 5.) Generally, such fees associated are compensable and appear reasonably incurred based on the time records.

JC is otherwise not entitled to any other costs claimed by the subject March 2026 Memo. The claimed sum of \$508,053.22 apparently includes fees which were incurred more than two years prior to the filing and service of the subject Memo. Any fees incurred prior to March 12, 2024, are not permitted on the subject Memo. (CCP § 685.070(b).)

Accordingly, the motion to tax is

GRANTED in part. The Court finds allowable costs of \$65,250.50. The remainder of the costs claimed by the March 2026 memo is taxed.

JD also moves to strike the

interest calculations. In light of the ruling on the March 2025 memorandum of costs, the interest calculations of the March 2026 memo are incorrect. The statutory scheme does not show that the interest calculations in a memo are binding in the same sense as the claimed costs in a memo. (CCP § 685.010-685.030 [explaining how interest accrues].) CCP § 685.070 does not address attacking any interest calculations. Thus, it is uncertain whether JD may move to tax or correct the interest claimed in the memo of costs. Interest calculations may presumably be performed at any time to determine the total judgment, based on the judgment, allowed costs (which become part of the judgment) and credits (including proof of payment), irrespective of the principal/interest calculations on cost memos.

Additionally, the request for

credit does not need to be resolved on these motions to tax. The proper vehicle for such a demand would be a motion for partial satisfaction of judgment. (CCP § 724.110.)